

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 630

BY AGRICULTURAL AFFAIRS COMMITTEE

AN ACT

RELATING TO AIRBORNE CONTROL OF PREDATORY ANIMALS; AMENDING SECTION 22-102A, IDAHO CODE, TO REVISE PROVISIONS REGARDING AIRCRAFT USE IN CONTROLLING UNPROTECTED OR PREDATORY ANIMALS AND TO MAKE TECHNICAL CORRECTIONS; PROVIDING THAT CERTAIN ADMINISTRATIVE RULES CONTAINED IN IDAPA 02.01.03 SHALL BE NULL, VOID, AND OF NO FORCE AND EFFECT; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 22-102A, Idaho Code, be, and the same is hereby amended to read as follows:

22-102A. AIRCRAFT USE IN CONTROLLING UNPROTECTED OR PREDATORY ANIMALS. (1) The director of the department of agriculture is hereby designated as the authorized agent of this state to aid in the administration or protection of land, water, wildlife, livestock, domesticated animals, human life, or crops for the purposes of issuing permits to persons to shoot or attempt to shoot, capture, harass, or kill unprotected or predatory animals, as designated by the director, while such person is airborne in an aircraft, under authority vested in such agency by ~~public laws~~ P.L. 92-159 and 92-502.

~~(2) The director shall issue such permits to applicants at no charge and shall require each permittee to submit a report each calendar quarter. The director also shall file with the United States secretary of the interior an annual report as prescribed in public laws P.L. 92-159 and 92-502.~~

(3) (a) As used in this section, "predatory animals" means coyotes, wolves, and red foxes.

(b) Red foxes may be controlled in areas where the Idaho department of fish and game has established a year-round hunting season for red foxes and, in consultation with the department of fish and game, outside of the areas where a year-round hunting season has been established by the department where red foxes are causing predation problems.

(4) The director shall provide permit applications to applicants upon request and at no charge. To obtain a permit, the applicant shall submit written permission from each owner of private land on whose property the applicant plans to conduct airborne control operations with the name and contact information for the owner of the property from whom such permission was obtained. Every permittee shall be subject to the permit's terms and conditions and shall be required to submit a report each calendar quarter, as delineated by the permit. A permittee may not transfer an airborne control permit to another person.

(5) In determining whether to grant or deny a permit application, the director may give due consideration to:

(a) The threat to resources;

1 (b) The type of control requested; and

2 (c) The number of permits issued for the same type of animal in the same
3 area.

4 (6) An airborne control permit shall not be used by a person to:

5 (a) Kill any type of animal different than the type of animal specified
6 on the permit;

7 (b) Engage in airborne control activities in a geographic area differ-
8 ent from the area specified on the permit; or

9 (c) Hunt for sport.

10 (7) The director is authorized to promulgate ~~such regulations~~ rules,
11 subject to legislative approval, in compliance with chapter 52, title 67,
12 Idaho Code, as may be necessary for the effective administration of this
13 subsection. Any violation of ~~such regulations~~ a permit or of any applicable
14 state, federal, or local law, rule, or regulation in the use of such permit
15 shall constitute a civil offense for which a civil penalty of not to exceed
16 one thousand dollars (\$1,000) may be imposed per incident of violation.

17 SECTION 2. The rules contained in IDAPA 02.01.03, Department of Agri-
18 culture, relating to the Airborne Control of Unprotected or Predatory Ani-
19 mals, shall be null, void, and of no force and effect on and after July 1,
20 2026.

21 SECTION 3. SEVERABILITY. The provisions of this act are hereby declared
22 to be severable and if any provision of this act or the application of such
23 provision to any person or circumstance is declared invalid for any reason,
24 such declaration shall not affect the validity of the remaining portions of
25 this act.

26 SECTION 4. An emergency existing therefor, which emergency is hereby
27 declared to exist, this act shall be in full force and effect on and after
28 July 1, 2026.